

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Spencer Migotsky	Team: Squad #01	CCRB Case #: 201503675	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/05/2015 7:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/5/2016	Precinct: 46		
Date/Time CV Reported Fri, 05/08/2015 3:31 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/08/2015 3:31 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBBX
2. An officer			NARCBBX
3. POM Josue Marcelin	26025	942120	NARCBBX
4. SGT Francisco Perez	00767	924326	NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. CPT Christophe Henning	00000	925443	NARCBBX
2. LT Ronald Bolte	00000	918765	NARCBBX
3. DT3 Allen Selegan	2344	939448	NARCBBX
4. DT3 Michael Mccarthy	6427	942155	NARCBBX
5. DT3 Emanuele Leggio	01400	936937	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Abuse: Officers entered and searched § 87(2)(b) in the Bronx.	A . Exonerated
B . POM Josue Marcelin	Abuse: PO Josue Marcelin failed to show the search warrant to § 87(2)(b)	B . Unsubstantiated
C . POM Josue Marcelin	Discourtesy: PO Josue Marcelin spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . SGT Francisco Perez	Discourtesy: Sgt. Francisco Perez spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . An officer	Abuse: An officer threatened to arrest § 87(2)(b)	E . Officer(s) Unidentified
F . An officer	Abuse: An officer strip-searched § 87(2)(b)	F . Alleged Victim Uncooperative

Case Summary

§ 87(2)(g)

On May 5, 2015 at approximately 8:10 pm, several officers from Bronx Narcotics entered § 87(2)(b) in the Bronx (**Allegation A**). § 87(2)(b) and § 87(2)(b) – their § 87(2)(b) daughter – were inside the apartment at that time. § 87(2)(b) asked the officers to show him a search warrant and PO Josue Marcelin said “I don’t have to show you shit” (**Allegation B** and **Allegation C**). § 87(2)(b) and § 87(2)(b) were handcuffed and brought out of the apartment. § 87(2)(b) complained that he had § 87(2)(b) and asked the officers to loosen the handcuffs a little. Sgt. Francisco Perez said “shut the fuck up, we don’t have to do anything” in response (**Allegation D**). The officers took the handcuffs off § 87(2)(b) and she approached § 87(2)(b) and put her head on him. An officer then said “we’ll put those handcuffs right back on and send you to Spofford” (**Allegation E**). The officers searched the apartment, did not find any contraband, and then left. § 87(2)(b) was told later by § 87(2)(b) that she was strip searched in the bathroom of the apartment, but § 87(2)(b) did not witness this (**Allegation F**). A voided arrest report was generated for § 87(2)(b). No one was arrested.

There is no video footage of this incident.

Mediation, Civil and Criminal Histories

In his original intake call, § 87(2)(b) stated that he was consulting with an attorney about filing a civil suit and so this case was deemed unsuitable for mediation. § 87(2)(b), [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

A notice of claim was returned with negative results.

Civilian and Officer CCRB Histories

- This is the fifth complaint filed by § 87(2)(b) § 87(2)(b)
- PO Marcelin has been a member of the NYPD for nine years. He has seven allegations over six prior complaints. He also has three allegations in one complaint filed two months after this complaint. Two of his other allegations were for discourteous words; however, these allegations did not include use of the word “shit.” No allegation against PO Marcelin has been substantiated.

- Sgt. Perez has been a member of the NYPD for 16 years and has 24 allegations over 12 previous cases. He has four previous allegations for discourteous words one of which was closed as unfounded and three of which were closed as unsubstantiated. None of these allegations included any phrase equivalent or similar to “shut the fuck up.”

Potential Issues

§ 87(2)(b) did not provide a statement to the CCRB on the advice of her lawyer.

§ 87(2)(b) is § 87(2)(b) and therefore required parental consent in order to provide a statement to the CCRB. However, § 87(2)(b) her father, did not allow her to provide a statement.

Finding and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(g)

§ 87(2)(b) stated that the subject officer of **Allegations B and C** was the arresting officer who he described as a black male in plainclothes in his 30s-40s (Board Review 02). On § 87(2)(b) voided arrest report, PO Marcelin is listed as the arresting officer (Board Review 03). He is also a § 87(2)(b) old black male. § 87(2)(g)

§ 87(2)(b) stated that the officer who told him “shut the fuck up” was a 5’8”, 160 pound, 40 year old, white, male sergeant in plainclothes with a buzz cut. He knew that the officer was a sergeant because other officers referred to him as a sergeant (Board Review 02). According to the tactical plan, the only sergeant present was Sgt. Perez (Board Review 04). Sgt. Perez is 5’6”, 165 pounds, § 87(2)(b) old, had close cut hair, and was wearing plainclothes during this incident. Although he is Hispanic, he looks as though he could be a darker skinned white person. § 87(2)(g)

§ 87(2)(b) described the officer who threatened to arrest his daughter as a short, white, male in his 30s-40s with a medium build, brown hair, and a goatee wearing plainclothes (Board Review 02). Two officers who were interviewed, Det. Allen Selegan and Det. Michael McCarthy both roughly fit the description provided and had facial hair although it was not styled as a goatee and they were both taller than § 87(2)(b). Det. McCarthy was asked whether any officer listed on the tactical plan had a goatee and he stated that Det. Leggio had a goatee (Board Review 05). However, Det. Leggio stated that he did not have a goatee during this incident and furthermore stands about 5’11” which is 4” taller than § 87(2)(b) (Board Review 06). The only white male officer present at § 87(2)(b) who was shorter than § 87(2)(b) was Det. Flynn who stands at 5’6”, however, Det. Selegan specifically stated in his interview that Det. Flynn was one of the officers present who did not have facial hair (Board Review 07). § 87(2)(g)

§ 87(2)(b) did not witness an officer strip search § 87(2)(b) although he said that a white or Hispanic female in uniform was the subject of this allegation (Board Review 02). § 87(2)(b) was uncooperative with the investigation and did not give a statement. § 87(2)(g)

Recommendations

Allegation A – Officers entered and searched § 87(2)(b) in the Bronx.

It is undisputed that officers entered § 87(2)(b). Search warrant § 87(2)(b) to be executed at § 87(2)(b) in the Bronx was obtained on § 87(2)(b) (Board Review 08). § 87(2)(g)

it is recommended that **Allegation A** be closed as **exonerated**.

Allegation B – PO Josue Marcelin failed to show the search warrant to § 87(2)(b)

Allegation C – PO Josue Marcelin spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that when the officers entered his apartment, he asked whether they had a search warrant and PO Marcelin responded “I don’t have to show you shit” (Board Review 02). PO Marcelin stated that he left a copy of the search warrant on the table in § 87(2)(b) apartment and denied that any officer talked back to any civilian in the apartment (Board Review 09). Sgt. Perez did not recall whether any officer left a physical copy of the warrant in the apartment, did not know whether PO Marcelin showed the warrant, and denied that any officer ever said “I don’t have to show you shit” (Board Review 10). Lt. Bolte also had a copy of the search warrant and stated that he showed it to § 87(2)(b) and § 87(2)(b). Lt. Bolte did not know if any officer left a copy of the warrant behind, did not hear any officer refuse to show a search warrant, and did not hear any officer say “I don’t have to show you shit” (Board Review 11). Det. Selegan did not hear any officer say “I don’t have to show you shit” or hear any civilian request to see a search warrant (Board Review 07). Det. McCarthy did not hear any officer say “I don’t have to show you shit” and did not recall whether any civilian asked to see a search warrant (Board Review 05). According to Det. Selegan and Det. McCarthy, no officer refused to show a search warrant (Board Review 05 and 07). Det. Leggio did not recall whether PO Marcelin said “I don’t have to show you shit” to anyone in the apartment or whether PO Marcelin refused to show a search warrant (Board Review 06). § 87(2)(g)

, it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

Allegation D – Sgt. Francisco Perez spoke discourteously to § 87(2)(b)

§ 87(2)(b) stated that after he was handcuffed, he was brought into the hallway outside of his apartment. He told the officers that he had § 87(2)(b) in his hands and asked them to release the handcuffs a little bit. According to § 87(2)(b) Sgt. Perez said “shut the fuck up” in response (Board Review 02). Sgt. Perez denied that any officer including himself said that remark as did PO Marcelin (Board Review 10). Lt. Bolte, Det. Selegan, and Det. McCarthy did not hear any officer say “shut the fuck up” while Det. Leggio said that he did not know whether any officer said “shut the fuck up” (Board Review 11, 07, 05, and 06). § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E – An officer threatened to arrest § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation E** be closed as **officer unidentified**.

Allegation F – An officer strip-searched § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation F** be closed as **victim uncooperative**.

Squad: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date